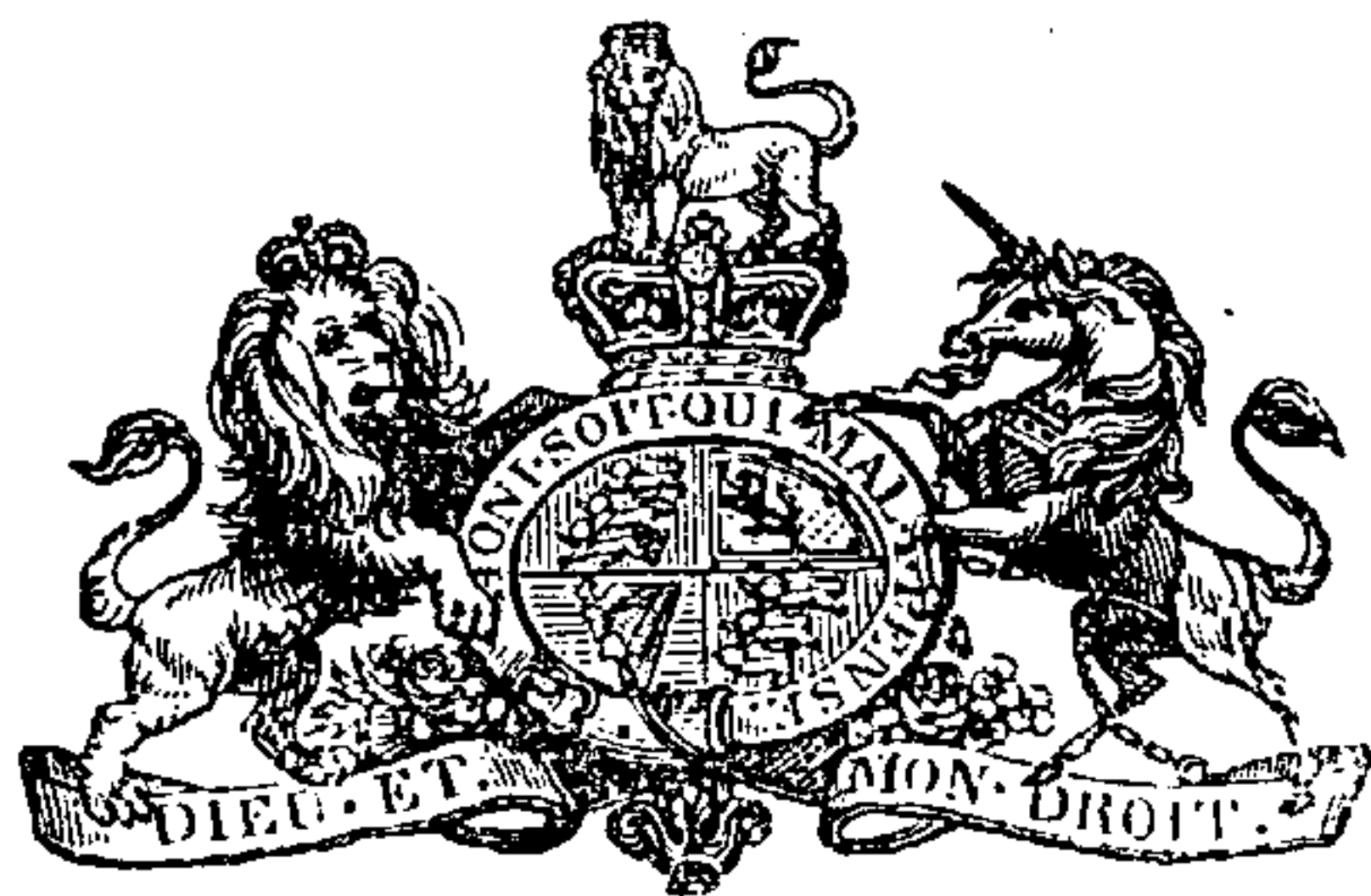




CHAPTER xiv.

An Act to incorporate and confer powers for the supply of water upon the Oakham Water Company. A.D. 1901.

[2nd July 1901.]

WHEREAS the parishes or places of Oakham Ashwell Barleythorpe Braunston Brooke Burley Eggleton Gunthorpe Hambleton Langham Manton and Martinsthorpe in the county of Rutland have no adequate or proper water supply and the population of those parishes or places is considerable and likely to increase :

And whereas the persons herein-after named in that behalf with others are willing to undertake the supply of water to the parishes or places aforesaid and it is expedient that they should be incorporated into a Company for that purpose and be authorised to construct waterworks and to exercise and carry into effect the powers and provisions of this Act :

And whereas plans and sections showing the lines and levels of the works authorised by this Act and a book of reference to the plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be used for the purposes of or under the powers of this Act were deposited with the clerk of the peace for the county of Rutland and are herein-after respectively referred to as the deposited plans sections and book of reference :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

1. This Act may be cited as the Oakham Water Act 1901.

Short title.

[Price 1s. 3d.]

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A.D. 1901.
Incorporation of
general Acts.

2. The following Acts and parts of Acts (so far as they are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely) :—

The Companies Clauses Acts 1845 to 1889 except the provisions of the Companies Clauses Act 1845 with respect to the conversion of borrowed money into capital;

The Lands Clauses Acts;

The Waterworks Clauses Acts 1847 and 1863 except the words “with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner” in section 44 of the former of those Acts.

Interpretation.

3. In this Act (unless the subject or context otherwise requires) words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have in this Act the same respective meanings. Provided that in the said Acts as incorporated with this Act and in this Act—

“The Company” means the Company incorporated by this Act;

“The works” “the waterworks” and “the undertaking” respectively mean and include the waterworks and the works connected therewith by this Act authorised to be made by the Company and any improvements thereof respectively which they may construct under the powers of this Act and the lands buildings estate right title property powers privileges and effects of the Company and every part thereof respectively and the undertaking of the Company;

The expression “town commissioners” in the Waterworks Clauses Act 1847 shall as regards the rural district of Oakham mean the rural district council of Oakham.

Proceedings for the recovery of any demand not exceeding fifty pounds made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in the county court.

Incorporation of
Company.

4. Eyan Hanbury Charles Stancliffe Newton and Seymour Pleydell Bouverie and all other persons who have subscribed to or shall hereafter become proprietors in the undertaking and their executors administrators successors and assigns respectively shall be and they are hereby incorporated into a Company for the

purposes herein-after mentioned by the name of "The Oakham Water Company" and by that name shall be a body corporate with perpetual succession and a common seal with power to purchase take hold and dispose of lands and other property for the purposes of this Act. A.D. 1901.
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5. The limits of supply of the Company and the powers of the Company shall extend to and include the parishes or places following (that is to say) Oakham Ashwell Barleythorpe Braunston Brooke Burley Eggleton Gunthorpe Hambleton Langham Manton and Martinsthorpe in the rural district of Oakham in the county of Rutland. Limits of
Act.

6. If at any time after the expiration of three years from the commencement of this Act the Company are not furnishing or prepared to furnish on demand a sufficient and suitable supply of water in accordance with the provisions of this Act in any part of the district of any local authority within the limits of this Act the local authority of such district may in accordance with the provisions of the Public Health Act 1875 provide a supply of water in the whole or any part of their district within the limits of supply as by this Act defined or any company body or person may apply for an Act of Parliament or Provisional Order for the purpose of supplying water in any part of such district as if in either case this Act had not been passed. Power to
local autho-
rity &c. to
supply water
in case
Company
fails to
supply.

If any difference shall arise between the Company and any such local authority company body or person as to the sufficiency or otherwise of the supply of water in any part of such district such difference shall be settled on the application of either party by the Board of Trade.

7. The Company shall be established for the purpose of supplying water to and within the limits of this Act and for other the purposes of this Act. General
purposes of
Company.

8. The capital of the Company shall be twenty thousand pounds in two thousand shares of ten pounds each. Capital.

9. The Company shall not issue any share created under the authority of this Act nor shall any such share vest in the person accepting the same unless and until a sum not being less than one-fifth of the amount of such share is paid in respect thereof. Shares not
to be issued
until one-
fifth paid up.

10. One-fifth of the amount of a share shall be the greatest amount of a call and three months at least shall be the interval between successive calls and three-fifths of the amount of a share Calls.

A.D. 1901. shall be the utmost aggregate amount of the calls made in any year upon any share.

Receipt in cases of persons not sui juris.

11. If any money is payable to a shareholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

Power to borrow.

12. The Company may borrow on mortgage of the undertaking any sum not exceeding in the whole five thousand pounds that is to say In respect of each ten thousand pounds of share capital issued and accepted and one-half whereof shall have been paid up the Company may borrow a sum not exceeding in the whole two thousand five hundred pounds but no part of any such sum of two thousand five hundred pounds shall be borrowed until shares for the portion of share capital in respect of which it is to be borrowed are issued and accepted and one-half of such portion of capital is paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 (before he so certifies) that shares for such portion of capital have been issued and accepted and that one-half thereof has been paid up and that not less than one-fifth part of the amount of each separate share in such portion of capital has been paid on account thereof before or at the time of the issue or acceptance thereof and the Company have proved to such justice before he so certifies that such shares were issued and accepted bonâ fide and are held by the persons to whom the same were issued or their executors administrators successors or assigns and also that such persons their executors administrators successors or assigns are legally liable for the same and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

For appointment of a receiver.

13. The mortgagees of the Company may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than one thousand pounds.

Debenture stock.

14. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the

interest of all debenture stock and of all mortgages at any time created and issued or granted by the Company under this or any subsequent Act shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock or mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages and charged upon the undertaking. Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock. A.D. 1901.

15. All moneys raised on mortgage by the Company under this Act and the interest due thereon and the interest due on debenture stock created and issued under this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of debts incurred or engagements entered into by the Company after the passing of this Act but this priority shall not affect any claim against the Company in respect of any rentcharge to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease to be granted or made to the Company by any person in pursuance of any Act relating to the Company which is entitled to rank in priority to or *pari passu* with the interest or dividends on the debenture stock or mortgages. Priority of mortgages and debenture stock over other debts.

16. All moneys raised under this Act whether by shares debenture stock or borrowing shall be applied only to the purposes of this Act to which capital is properly applicable. Application of moneys.

17. The first ordinary meeting of the Company shall be held within six months after the passing of this Act. First ordinary meeting.

18. The number of directors shall until the first general meeting of the Company be three but the Company may at that or any subsequent meeting vary the number provided that the number be not at any time less than three or more than seven. Number of directors.

19. The qualification of a director shall be the possession in his own right of not less than fifty shares. Qualification of directors.

20. The quorum of a meeting of directors shall be three. Quorum of directors.

21. Evan Hanbury Charles Stancliffe Newton and Seymour Pleydell Bouverie shall be the first directors of the Company and shall continue in office until the first ordinary meeting held in the year next after the passing of this Act. At that meeting the shareholders present in person or by proxy may (subject to the First directors.

A.D. 1901. — power herein-before contained for varying the number of directors) either continue in office the directors appointed by this Act or any of them or may elect a new body of directors or directors to supply the place of those not continued in office the directors appointed by this Act being (if they continue qualified) eligible for re-election and at the first ordinary meeting to be held in every year after the first ordinary meeting the shareholders present in person or by proxy shall (subject to the power herein-before contained for varying the number of directors) elect persons to supply the places of the directors then retiring from office agreeably to the provisions of the Companies Clauses Consolidation Act 1845 and the several persons elected at any such meeting being neither removed nor disqualified nor having died or resigned shall continue to be directors until others are elected in their stead in manner provided by the same Act.

Election of directors.

Contracts not to disqualify for office of director.

22. Any contract to be made under this Act with any public body shall not disqualify any of the members of such public body for the office of director of the Company but a director of the Company being a member of any such public body shall not vote upon any question with reference to any contract with such public body.

Power to make water-works.

23. Subject to the provisions of this Act the Company may make and maintain the works herein-after described in the lines and situations and according to the levels shown on the deposited plans and sections (that is to say) :—

Work No. 1.—A well in the parish of Braunston and rural district of Oakham in the county of Rutland in the property numbered 212 on the Ordnance map scale $\frac{1}{2500}$ edition 1886 :

Work No. 2.—An adit or line of pipes wholly in the parish of Braunston aforesaid commencing at Work No. 1 and proceeding in a south-westerly and southerly direction and crossing the road from Braunston to Brooke Priory and Brooke and terminating in the property numbered 237 on the aforesaid Ordnance map by a junction with Works Nos. 3 4 and 5 at a point 2 chains or thereabouts south of the road leading to Braunston and Brooke and 3 chains or thereabouts measured in a south-easterly direction from the north-west corner of the said property :

Work No. 3.—An adit or line of pipes wholly in the said parish of Braunston commencing at a point on the western boundary of the property numbered 237 on the before-mentioned

Ordnance map 1 chain or thereabouts south of the road leading from Braunston to Brooke and terminating in the said junction with Works Nos. 2 and 4 at the terminations thereof and at the commencement of Work No. 5 : A.D. 1901.

Work No. 4.—An adit or line of pipes wholly in the said parish of Braunston commencing in the north-eastern corner of the property numbered 237 on the aforesaid Ordnance map and terminating in the said junction with Works Nos. 2 and 3 at the terminations thereof and at the commencement of Work No. 5 :

Work No. 5.—An aqueduct conduit or line of pipes wholly in the parish of Braunston aforesaid commencing at the said junction of Works Nos. 2 3 and 4 and proceeding in a south-easterly direction through the said property numbered 237 and the adjacent properties numbered 238 and 239 on the aforesaid Ordnance map and terminating at a point 4 chains or thereabouts north-west of the Ordnance bench mark 344.0 on the bridge over the River Gwash by a junction with Work No. 6 :

Work No. 6.—A pumping station and collecting tanks situate wholly in the said parish of Braunston in the eastern portion of the property numbered 239 on the aforesaid Ordnance map :

Work No. 7.—An aqueduct conduit or line of pipes (Pipe Line No. 1) commencing in the said parish of Braunston by a junction with Work No. 6 at a point 5 chains or thereabouts in a north-westerly direction from the aforesaid bench mark 344.0 and proceeding along the high road from Braunston to Brooke Priory and Brooke into and through properties numbered 212 181 173 on the aforesaid Ordnance map and properties 141 and 140 in the parish of Oakham on the aforesaid Ordnance map and terminating by a junction with Work No. 8 in the west corner of the said property numbered 140 on the aforesaid Ordnance map :

Work No. 8.—A reservoir or storage tank to be situate wholly in the parish of Oakham aforesaid in the western portion of the property numbered 140 on the $\frac{1}{2500}$ Ordnance map 1st edition 1884 :

Work No. 9.—An aqueduct conduit or line of pipes (Pipe Line No. 2) wholly in the parish of Oakham aforesaid commencing at the service reservoir (Work No. 8) and proceeding along the high road from Braunston to Oakham and terminating in

A.D. 1901.

the ditch in the said road at a point 2 chains or thereabouts measured from the north-west corner of the property numbered 140 on the aforesaid Ordnance map :

Work No. 10.—An aqueduct conduit or line or lines of pipes (Pipe Line No. 3) commencing at a point 2 chains or thereabouts measured from the north-west corner of the said property No. 140 aforesaid by a junction with Work No. 7 and passing into the high road from Braunston to Oakham at the west corner of the property numbered 140 on the $\frac{1}{2500}$ Ordnance map 1st edition 1884 and proceeding along the high road aforesaid in the parish of Oakham and terminating at the junction of West Road and Braunston Road at a point 50 links or thereabouts to the southward of the southern end of West End Terrace in the said parish of Oakham :

Together with all such wells adits culverts drains tanks water towers filters walls approaches engines machinery and appliances as may be necessary or expedient in connexion with the foregoing works or any of them.

Limits of deviation.

24. In the construction of the works authorised by this Act the Company may deviate laterally to any extent not exceeding the limits of lateral deviation shown on the deposited plans and where on any road no such limits are shown the boundaries of such road shall be deemed to be such limits and they may also deviate vertically from the levels shown on the deposited sections to any extent not exceeding in the case of the service tank or reservoir three feet upwards and five feet downwards and in the case of all other works to any extent not exceeding three feet upwards and ten feet downwards Provided as follows (that is to say) :—

The Company shall not construct any wall of the service tank or reservoir of a greater height above the general surface of the ground than that shown on the deposited sections in respect of the corresponding wall and 3 feet in addition :

Except for the purposes of crossing over a stream no part of the pipes shall be raised above the surface of the ground unless and except so far as is shown on the deposited sections.

Period for completion of works.

25. If the works shown on the deposited plans and authorised by this Act are not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Company for making and completing such works or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

26. Subject to the provisions of this Act the Company may enter upon and take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as they require for the purposes of this Act and may divert collect impound take appropriate and use for the purposes of the Company all waters which may be found in on or under any such lands or any land for the time being belonging to the Company Provided always that nothing herein contained shall confer upon the Company the right of taking water directly from the River Gwash.

A.D. 1901.

Power to
take lands
and waters.

27. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Period for
compulsory
purchase of
lands.

28. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Power to
take eas-
ements &c. by
agreement.

29. In addition to any other lands which the Company are under this Act authorised to take or purchase the Company may by agreement take purchase and hold for the purposes of this Act and for the general purposes of their undertaking any lands within their limits of supply not exceeding in the whole five acres in extent or any easement (not being an easement of water in which persons other than the grantors have an interest) in over or under any such lands Provided that the Company shall not deal with such lands so as to create or permit a nuisance nor use any such lands for any building except buildings required for the undertaking of the Company.

Purchase of
lands by
agreement.

30.—(1) The Company shall not under the powers of this Act purchase or acquire ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

Restriction
on taking
houses of
labouring
class.

A.D. 1901.

(2) If the Company acquire or appropriate any house or houses for the purposes of this Act in contravention of the provisions of this section they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the court may if it think fit reduce such penalty.

(3) For the purposes of this section the expression "house" means any house or part of a house occupied as a separate dwelling and the expression "labouring class" means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any such persons who may be residing with them.

Company
may dispose
of lands not
required.

31. The Company may demise and lease for any terms not exceeding seven years in possession and also either before or after making any demise and lease thereof absolutely sell and dispose of to such persons and in such manner as the Company think fit any lands houses and property for the time being belonging to the Company which they do not require for the purposes of their undertaking (subject nevertheless to the provisions of the Lands Clauses Consolidation Act 1845 with respect to the sale of superfluous lands so far as such provisions are in each case applicable) and on the lease or sale by the Company of any such lands houses and property they may reserve to themselves all or any part of the water or water rights or other easements belonging thereto and may make the lease or sale subject to such reservations accordingly and may also make any such lease or sale subject to such other reservations special conditions restrictions and provisions with respect to use of water exercise of noxious trades or discharge or deposit of manure sewage or other impure matter as they think fit.

As to
pressure.

32. The Company shall not be required to supply water in any case at a pressure greater than that to be afforded by gravitation from the service tank or reservoir from which such water is supplied being the reservoir or storage tank herein-before described as Work No. 8.

33. The Company shall subject to the provisions of this Act on the application of any owner or occupier of any dwelling-house or part of a dwelling-house who under the provisions of this Act shall be entitled to demand a supply of water for domestic purposes furnish to such person a supply of water sufficient and suitable for domestic purposes at rates and charges according to the rateable value of his dwelling-house or part of a dwelling-house not exceeding the following (that is to say):—

A.D. 1901.
Rates at
which water
is to be
supplied for
domestic
purposes.

Where the rateable value of the premises so supplied with water does not exceed seven pounds per annum the sum of twopence per week;

Where the rateable value exceeds seven pounds and does not exceed twenty pounds at a rate per annum not exceeding eight pounds per centum of such rateable value;

Where the rateable value exceeds twenty pounds at a rate per annum not exceeding seven pounds per centum of such rateable value:

Provided as follows:—

The Company shall not be compelled to furnish such supply for any less sum than eight shillings and eightpence in any one year:

All inns hotels and schools whether public or private the rateable value of which exceeds five pounds shall be liable to a yearly rate not exceeding nine pounds per centum or if the Company think fit the supply shall be by meter:

When the water rate is chargeable on the rateable value of a part only of any premises entered in the valuation list or poor rate (such part not being separately assessed to the rate for the relief of the poor) such rateable value shall be a fairly apportioned part of the rateable value of the whole premises ascertained as aforesaid the apportionment in case of dispute to be determined by two justices:

Provided also that the Company shall not be entitled in any case to demand for the water rate for any house or part of a house included in any division of the above scale a greater sum of money than they would be entitled to demand if such a house or part of a house were of just sufficient rateable value to bring it within the next division of the said scale relating to premises of a higher rateable value whereon a lower rate per centum per annum is chargeable.

For the purposes of this section the rateable value shall be the net rateable value as ascertained by the valuation list in force at

A.D. 1901. the commencement of the quarter in which the water rate accrues or if there is no such list in force by the last rate made for the relief of the poor.

Rates for
waterclosets
and private
baths.

34. In addition to the rates computed as above specified the Company may charge for a supply of water to every watercloset beyond the first (for which no charge shall be made) the sum of six shillings per annum and to every fixed bath the sum of twelve shillings per annum. Provided that for every bath containing as usually filled for use more than fifty gallons the Company may if they supply the same charge an increased rate in proportion to the size of the bath. Such additional sums shall be recoverable in all respects with and as the water rate.

Rates
payable by
owners of
small houses.

35. Where a house supplied with water is let to monthly or weekly tenants or tenants holding for any other period less than a quarter of a year the owner instead of the occupier shall if the Company so determine pay the rate for the supply but the rate may be recovered from the occupier and may be deducted by him from the rent from time to time due from him to the owner. Provided that no greater sum shall be recovered at any one time from any such occupier than the amount of rent owing by him or which shall have accrued due from him subsequent to the service upon him of a notice to pay the rate.

Not bound
to supply
several
houses by
one pipe.

36. The Company shall not be bound to supply more than one house by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house supplied by them with water.

Certain
provisions
as to supply.

37. The Company shall not be compelled to supply with water any watercloset or any bath or the apparatus or pipes connected therewith respectively unless the same be so constructed and used as to prevent the waste undue consumption or contamination of the water of the Company nor any bath which shall be capable of containing when filled for use more than fifty gallons of water. Provided that the foregoing provisions shall not entitle the Company to discontinue the domestic supply of a house in which such watercloset or bath is situate.

Supply by
measure in
certain cases.

38. The Company shall not be bound to supply with water otherwise than by measure—

Any building used by an occupier as a dwelling-house whereof any part is used by the same occupier for any trade or manufacturing purposes for which water is required;

A.D. 1901. section 14 of the Waterworks Clauses Act 1863 shall extend to authorise the Company to let for hire any water fittings to any person supplied by them with water.

Notice to
Company of
connecting
or discon-
necting
meters.

44. Before any person connects or disconnects any meter through which any of the water of the Company is intended to be or has been registered he shall give not less than twenty-four hours' notice in writing to the Company of his intention to do so and all alterations or repairs to and the connecting or disconnecting of meters shall be done at his cost and under the superintendence of an officer or person authorised by the Company and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding five pounds.

Register of
meter to be
primâ facie
evidence.

45. Where water is supplied by measure the register of the meter shall be primâ facie evidence of the quantity of water consumed Any dispute as to such quantity shall be determined on the application of either party by a court of summary jurisdiction who may order by whom the costs of the proceedings shall be paid and the decision of such court shall be final and binding upon all parties.

Fraudulently
injuring
meters &c.

46. Every person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or other instrument for measuring water or any fittings belonging to the Company or who fraudulently alters the index to any meter or other instrument for measuring water or prevents any meter or other instrument for measuring water from duly registering the quantity of water supplied or fraudulently abstracts consumes or uses water of the Company shall (without prejudice to any other right or remedy for the protection of the Company) be liable to a fine not exceeding five pounds and the Company may in addition thereto recover the amount of any damage by them sustained.

And in any case in which any person has wilfully fraudulently or by culpable negligence injured or suffered to be injured any pipe meter instrument or fittings belonging to the Company or has fraudulently altered the index to any meter or other instrument for measuring water or prevented the same from duly registering the quantity of water supplied or has fraudulently abstracted consumed or used water of the Company the Company may also enter upon the premises occupied by the offender and repair such injury and do all such works matters and things as may be necessary for insuring the proper registering by such meter or

Any premises or person for horses or for washing carriages ;
Any workhouse hospital or other large public institution.

A.D. 1901.

39. The price to be charged by the Company to those owners or occupiers who under the provisions of the last preceding section shall elect to take the water by meter or who shall be compellable by the Company to accept a supply by meter shall be as follows :—

Rate for
supply by
meter in
certain cases.

Where the quantity taken in any quarter of a year shall not exceed fifty thousand gallons at a rate not exceeding one shilling and sixpence for every thousand gallons ; and

Where the quantity taken in any quarter of a year shall exceed fifty thousand gallons then at a rate not exceeding one shilling and fourpence for every thousand gallons in excess of fifty thousand gallons :

The Company shall not be compellable to afford a supply by meter for a less sum than one pound and four shillings in any one year over and beyond the meter rent.

40. Subject to the provisions of this Act the Company may supply water for other than domestic purposes on such terms and conditions as the Company think fit and may enter into agreements for the supply of water by measure either for domestic or other purposes. The moneys payable for the supply of water under this section shall be recoverable in the same manner as water rates and when by measure shall not exceed the rates specified in the section the marginal note whereof is "Rate for supply by meter in certain cases". Provided that no person shall be entitled to a supply for other than domestic purposes if such supply would at any time interfere with the sufficiency of the supply of water for domestic purposes.

Power to
Company to
supply water
under agree-
ment and by
measure.

41. A notice to the Company from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing and be left at or sent by prepaid letter to the office for the time being of the Company.

Notice of
discontinu-
ance.

42. The Company shall when required supply every road authority and every sanitary authority within the limits of supply at such convenient places as such authority may reasonably require with water for flushing sewers and drains or for cleansing or watering streets or other public purpose at a rate not exceeding one shilling for every thousand gallons.

Water for
flushing
sewers &c.

43. The Company may sell meters and any water fittings connected therewith upon and subject to such terms (pecuniary or otherwise) and conditions as they may think fit. The provisions of

Power to
sell or let
meters.

other instrument for measuring water of the quantity of water supplied by means thereof and the expense of such repair and of all such works matters and things shall be repaid to the Company by the person so offending and may be recovered by them as water rates are recoverable. The existence of artificial means for causing such injury alteration or prevention or for abstracting consuming or using water of the Company when such pipe meter instrument or fittings is or are under the custody or control of the consumer shall be *prima facie* evidence that such injury alteration prevention abstraction consumption or use as the case may be has been fraudulently knowingly and wilfully caused by the consumer using such pipe meter instrument or fittings.

47. Every consumer of water of the Company shall at all times at his own expense keep all meters belonging to him whereby any water of the Company is registered in proper order for correctly registering such water in default whereof the Company may cease to supply water through such meters and the Company shall at all reasonable times have access to and be at liberty to take off remove test inspect and replace any meter belonging to a consumer such taking off removal testing and inspecting and replacing to be done at the expense of the Company if the meter be found in proper order but otherwise at the expense of the consumer.

Repair of
meters.

48. The Company after forty-eight hours' notice in writing under the hand of the secretary or some other officer of the Company to the occupier or if there be no occupier then to the owner or lessee of any building or lands in which any pipe meter or fitting belonging to the Company is laid or fixed and through or in which the supply of water is from any cause other than the default of the Company discontinued for not less than forty-eight consecutive hours may enter such building or lands between the hours of nine in the morning and four in the afternoon or at any other time with the authority in writing of a justice for the purpose of removing and may remove every such pipe meter and fitting repairing all damage caused by such entry or removal.

Power to
remove
meters and
fittings.

49. The Company may if requested by any person supplied or about to be supplied by them with water furnish to him and renew repair or alter (but shall not manufacture) any such cisterns pipes valves ferrules cocks baths soil pans and waterclosets apparatus receptacles fittings and appliances as are required or permitted by their byelaws in connexion with such supply and may provide all materials and do all work necessary or proper in that behalf and the reasonable charges of the Company in

Power for
Company
to supply
materials &c.

A.D. 1901. — providing such materials and executing such work shall be paid by the person requiring the same.

Byelaws for preventing waste &c. of water.

50. For preventing waste misuse undue consumption or contamination of the water of the Company the following provisions shall have effect (that is to say) :—

- (1) The Company may make byelaws for the purpose of preventing the waste undue consumption or misuse or contamination of water and by such byelaws may prescribe the size nature materials workmanship and strength and the mode of arrangement connexion disconnexion alteration and repair of the pipes meters cocks ferrules valves soil pans water-closets baths tanks cisterns and other apparatus fittings means contrivances receptacles or appliances whatsoever to be used and may forbid the use of the several things before-mentioned or any or either of them and any arrangements which may lead to waste or undue consumption misuse erroneous measurement or contamination :
- (2) Such byelaws shall not be of any force or effect except within such part or parts of the district which the Company for the time being are bound to supply and do in fact supply or are prepared on demand to supply with water under constant pressure :
- (3) All such byelaws shall be subject to the provisions contained in sections 182 183 184 and 186 of the Public Health Act 1875 and all penalties imposed for the breach of any such byelaws shall be recoverable in manner provided by that Act for the recovery of penalties and those sections shall for the purposes of this section be construed as if the Company were a local authority within the meaning of those sections and the secretary of the Company were the clerk of the local authority :
- (4) A copy of all such byelaws in force for the time being shall be kept at the office of the Company All persons may at all reasonable times inspect such copy without payment and the Company shall cause to be delivered a printed copy of all byelaws for the time being in force to every person applying for the same on payment of a sum not exceeding twopence for each copy :
- (5) In case of failure of any person to observe such byelaws as are for the time being in force the Company may if they think fit after twenty-four hours' notice in writing enter and by or under the direction of their duly authorised officer repair

replace or alter any pipe meter valve cock ferrule tank cistern bath soil-pan watercloset or other apparatus means contrivance or receptacle fittings or appliances belonging to or used by such person and the expense of every such repair replacement or alteration shall be repaid to the Company by and may be recovered by them as part of the water rate from the person to whom the water is supplied. A.D. 1901.

51. The Company may on the application of the owner or occupier of any premises within the limits of this Act abutting on or being erected in any street laid out but not dedicated to public use supply such premises with water and may lay down take up alter relay or renew in across or along such street such pipes and apparatus as may be requisite or proper for the furnishing of such supply. Power to lay pipes in streets not dedicated to public use.

52. The Company may enter into and carry into effect agreements with the rural district council of Oakham and with any other local authority or any company or person for the supply of water beyond the limits of this Act to the said council or other local authority or to such company or person respectively in bulk for any purpose and for such remuneration and on such terms and conditions and for such period as may be agreed upon Provided that such supply shall not be given except with the consent of the local authority of or any company supplying water under parliamentary authority within the district to be supplied nor if and so long as such supply would interfere with the supply of water for domestic purposes within the limits of this Act. Contracts for supplying water in bulk.

53. No justice or judge of any court shall be disqualified from acting in the execution of this Act by reason of his being liable to the payment of any water rate meter rent or charge under this Act. Liability to water rent not to disqualify justices &c.

54. All costs charges and expenses of and incident to the preparing for and obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company. Costs of Act.

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